



Malicious Damage Act 1964

1964 CHAPTER 76

An Act to extend the jurisdiction of magistrates' courts under section 14 of the Criminal Justice Administration Act 1914, and otherwise to amend that section.

[31st July 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In subsection (1) of section 14 of the Criminal Justice Amendment of Administration Act 1914 (summary trial for malicious damage to Criminal property) for the words “twenty pounds”, in both places where those words occur, there shall be substituted the words “one hundred pounds” and for the words “further amount” there shall be substituted the word “amount”; and accordingly that section 14. 4 & 5 Geo. 5. subsection shall have effect as set out in the Schedule to this Act. c. 58.

(2) This section applies only to offences committed after the commencement of this Act.

2.—(1) This Act may be cited as the Malicious Damage Act 1964. Short title and extent.

(2) This Act does not extend to Scotland or Northern Ireland.

SCHEDULE**CRIMINAL JUSTICE ADMINISTRATION ACT 191
SECTION 14(1) AS AMENDED**

14.—(1) If any person wilfully or maliciously commits any damage to any real or personal property whatsoever, either of a public or private nature, and the amount of the damage does not, in the opinion of the court, exceed one hundred pounds, he shall be liable on summary conviction—

- (a) if the amount of the damage, in the opinion of the court, exceeds five pounds, to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds; and
- (b) if the amount of the damage is, in the opinion of the court, five pounds or less, to imprisonment for a term not exceeding two months or to a fine not exceeding five pounds;

and in either case to the payment of such amount as appears to the court reasonable compensation for the damage so committed which last-mentioned amount shall be paid to the party aggrieved:

Provided that this provision shall not apply where the alleged offender acted under a fair and reasonable supposition that he had a right to do the act complained of.